**IN THE CIRCUIT COURT FOR WILLIAMSON COUNTY, TENNESSEE
AT FRANKLIN**

ELIZABETH ANNE GIFFORD	)	
Plaintiff/Wife,	)	
	)	
v.	)	**Docket No. 25-CV-543**
	)	
GRANT TAYLOR GIFFORD,	)	
Defendant/Husband.	)	

MARITAL DISSOLUTION AGREEMENT

THIS MARITAL DISSOLUTION AGREEMENT made and entered into by and between Elizabeth Anne Gifford (hereinafter referred to as "Wife") and Grant Taylor Gifford (hereinafter referred to as "Husband") subject to the following premises, terms, and conditions:

WITNESSETH

WHEREAS the parties were married on August 18, 2018, and separated on or about June 30, 2025, and have, since the latter date, been living in a bona fide state of separation; and

WHEREAS the parties have one child of the marriage, D.S.H. (DOB 12/30/2007), but as of the entry of this Agreement, has reached the age of majority and no parenting plan shall be necessary; and

WHEREAS certain differences and difficulties have arisen between the parties, and a divorce action in which irreconcilable differences is alleged as a ground has been instituted in the Circuit Court for Williamson County, Tennessee, and they have no expectation of resuming their marital relationship;

WHEREAS the parties have represented each to the other that they have made a full and complete disclosure of all their assets and liabilities;

WHEREAS the parties desire to enter this Marital Dissolution Agreement to settle all questions relating to spousal support, division of property, liabilities, alimony, expenses of litigation, and any and all other claims or rights of an financial nature whatsoever concerning the parties, and to tender this Agreement to this Honorable Court for approval in the event that a Final Decree of Divorce is granted in this cause;

WHEREAS Wife is represented by Jeffrey Kuykendall, Esq., and Husband is represented by Hannah Shanley, Esq.

NOW, THEREFORE, for the reasons set forth above and in consideration of the mutual covenants and agreements set forth herein, the parties agree as follows:

1. **DIVORCE**. Wife filed a Complaint for Absolute Divorce in the Circuit Court for Williamson County, Tennessee, under Docket No.: 25-CV-543 and shall proceed with obtaining a divorce on the grounds of irreconcilable differences. This Agreement shall be presented to the Court for approval and incorporated into the Final Decree.

   Husband hereby signs this agreement for the purpose of granting Wife a divorce upon the grounds of irreconcilable differences so that it will not be necessary for Husband to appear at the final hearing for absolute divorce in person, unless requested to do so by this Honorable Court.

2. **REAL PROPERTY**. The parties agree that they do not own any real property.

3. **TRANSITIONAL ALIMONY**. The parties acknowledge that Wife is not entitled to alimony but agree that Husband shall pay Wife three thousand dollars ($3,000.00) per month. Said payments shall commence on the 6st of the month following the entry of the Final Decree, with the final payment due on July 6, 2026. Upon payment on July 6, 2026, Husband shall be relieved of any financial obligations to Wife for alimony.

The parties agree that this award constitutes transitional alimony, pursuant to Tenn. Code Ann. §36-5-121(g),and is non-modifiable as to amount or duration except as expressly described herein.

Deductions: Wife agrees that she shall be solely responsible for the monthly payments for the following obligations: her cellphone, auto insurance, and all obligations associated with the lease of the Kia, totaling six hundred thirty-three dollars ($633.00) per month. Wife agrees to remove Husband's name and liability from all associated accounts or lease obligations, and until such time, Husband shall deduct the above listed sum of $633.00 from the monthly alimony payment. Wife shall receive a total sum of two thousand three hundred seventy-seven dollars ($2,377.00) per month. At such time that Wife removes Husband's name and liability from all associates accounts and obligations, and upon receipt of written confirmation of same, Husband agrees to resume payments to Wife of three thousand dollars ($3,000.00) a month for any remaining months within the above referenced time frame.

The parties expressly acknowledge and agree that Husband's obligation under this section to remit alimony to Wife, shall be strictly contingent on Husband's employment status. Any material change in Husband's employment status shall constitute grounds for modification of amount or duration, or termination, whichever the parties mutually agree upon at the time of the material change. Husband agrees to provide Wife written notice, within seven (7) days of any material change in his employment status. Any modification of alimony shall be made in good faith between the parties unless expressly set forth herein or in accordance to Tennessee law.

4. **PERSONAL PROPERTY**. The parties have divided between themselves all personal belongings that were acquired during the marriage. Wife shall be awarded all items currently within her possession free and clear of any claim by Husband. Husband shall be awarded all items currently within his possession free and clear of any claim by Wife. Each party makes no claim to any property in the possession of the other party and, by signing this document, quitclaims any interest he or she may have to the property in possession of the other.

5. **ANIMALS.** The parties acknowledge that they have two (2) animals: Protier, a Husky, and Aurora, a boxer. Wife will assume ownership and all financial obligations and responsibilities of Protier. Husband shall assume ownership and all financial obligations and responsibilities of Aurora. The Parties agree that Wife shall assume ownership and all financial obligations and responsibilities of the two (2) cats.

6. **VEHICLES**. The Parties acknowledge that there is one vehicle, a Kia, currently leased in both parties' name, and bearing Vehicle Identification Number (5XYK5CDF6RG206814). Wife agrees to remove Husband from the lease and release him of all financial obligations and liability under the lease. Wife shall be solely responsible for all payments associated with the Kia at the time of the entry of the final decree. In the event that Wife is unable to fully assume the lease obligations of the vehicle, Husband agrees to remain on the lease until Wife has the ability to undertake all responsibilities and obligations under the lease. Notwithstanding Husband remaining on the lease, Wife shall continue to be responsible for all monthly financial obligations associated with the Kia.

Upon Wife's ability to assume all financial responsibility and obligations under the lease, Husband shall execute all appropriate documentation to remove himself from the lease and transfer possession of said vehicle to Wife, solely and separately, within a reasonable time thereafter. Wife shall be solely responsible for all remaining indebtedness, taxes, insurance, registration fees and all remaining costs associated with the vehicle.

Any interest that the Husband has in the above listed vehicle shall be divested of him and vested fully in Wife. Wife hereby releases and agrees to hold Husband harmless for any future claims, demands, or liabilities associated with the vehicle after the Husband is removed from the lease.

The Parties acknowledge that Husband has one vehicle titled solely in his name. Husband shall be awarded the 2025 Dodge Ram, bearing the Vehicle Identification Number 1C6SRFJP7SN683311. Any interest that the Wife has in the above referenced vehicle shall be divested of her and vested fully in Husband. Husband shall be responsible for all remaining indebtedness, taxes, insurance, registration fees and all remaining costs associated with the vehicle. Husband hereby releases and agrees to hold Wife harmless for any future claims, demands, or liabilities associates with the vehicle upon the entry of the Final Decree.

The parties acknowledge that a marital vehicle was previously sold. The parties agree that that Wife is entitled to three thousand five hundred dollars ($3,500.00), representing her share of the sale proceeds. Husband shall pay the sum of three thousand five hundred dollars ($3,500.00) upon the entry of the Final Decree.

Payment shall be made by certified funds, electronic transfer, or other mutually agreed method.

Each party agrees to release any claim or right each may have to the vehicle(s) of the other quitclaim any interest each party may have to the other's vehicle.

7. **HEALTH INSURANCE**. The parties agree that Husband shall maintain health insurance coverage for the child and further agrees to maintain and cover Wife's health insurance through the end of 2026. Wife shall be solely responsible for any additional expenses, beyond those that are covered by the applicable annual deductible. The parties agree that Wife shall maintain her own health insurance beginning the renewal period in 2026.

   Future medical payments: The parties agree that any future medical issues relating to Wife's prior cervical spine injury shall be made in good faith. Husband agrees to cover any expenses relating to future medical issues concerning Wife's prior injury, up to the applicable annual deductible. All additional, non-covered expenses or costs shall be the sole responsibility of Wife.

8. **CRYPTO CURRENCY**. The parties acknowledge that certain cryptocurrency assets are presently held solely in the name of Husband. The parties agree that, within ten (10) days of the entry of the Final Decree, Husband shall liquidate the entirety of the cryptocurrency holdings, at their current market-value at the time of liquidation, and apply all derived funds from the cryptocurrency assets to all debts held jointly. Should any funds remain thereafter, the funds shall be divided equally between the parties. Each party shall be responsible for all taxes and fees associated with or incurred upon their distributed funds. Each Party agrees to hold harmless the other for

any debts, fees, taxes, or liabilities on the distributed amount. The funds distributed shall be the sole and separate property of each party.

Within ten (10) days from the final payment of all debts incurred in both parties' names, Husband shall cooperate in good faith to transfer to the Wife her fifty (50) percent share of any of the remaining Cryptocurrency assets, by direct transfer to Wife. Any Cryptocurrency Assets acquired by Husband after the entry of the Final Decree, held in his name solely or within his control, possession shall be deemed his sole and separate property. Wife hereby waives all rights, claims, or interest on all such assets acquired after the entry of the Final Decree.

DEBT. The parties acknowledge that certain debts and financial obligations were incurred jointly, or individually, during the marriage, in the amount of thirty-four thousand dollars ($34,000.00). The parties acknowledge that the value of cryptocurrency is volatile and fluctuates at an unpredictable rate, either increasing or decreasing, and the exact amount held in cryptocurrency shall be determined at the time of the Final Decree. The parties agree that Husband shall liquidate the entirety of the cryptocurrency holdings, within ten (10) of the entry of the Final Decree and apply all holdings to the outstanding debt. The parties agree that any outstanding debts, not covered by the liquidated cryptocurrency assets, shall be distributed equally between the parties.

Each party shall be solely responsible for any debt, liabilities or obligations held in their name, individually, whether incurred before or after the entry of the Final Decree. Each Party agrees to indemnify and hold the other harmless from any claims, demands, or expenses arising from any debts or obligations for which they are individually liable.

Iberostar account: The parties acknowledge that an Iberostar Account (Account No.: 042640), is held jointly in both of their names. The parties agree that Wife shall use the $6,000 credit on the account towards the minor child's senior graduation trip to Mexico.

The parties agree that Wife shall be removed from the account upon the completion of the minor child's graduation trip. The Iberostar account shall be the sole and separate property of the Husband. The parties acknowledge that Husband, at his own discretion, may make additional deposits or contributions to the account upon execution of the disbursement. Any such future contributions, interest, or appreciation derived therefrom shall be the sole and separate property of the Husband. Husband shall be liable for all debts and liabilities incurred after the disbursement. Husband agrees to hold Wife Harmless for any debts or liabilities incurred after distribution. Wife agrees to waive all rights, claims, or interest on the account upon the conclusion of the minor child's graduation trip.

9. **RETIREMENT ACCOUNTS**. The parties acknowledge that Husband has a 401k retirement account, Ameritas Bank, held solely in Husband's name. The parties agree that the account shall be the sole and separate property of the Husband and shall remain in his exclusive possession and control. Wife hereby waives all rights, claims, or interest to the above listed account and agrees the account shall be free and clear of any claims made by her.

The parties acknowledge that there is a Fidelity Account (Account No.: 636-560140) held jointly in both parties' names. The parties agree that, upon the entry of the Final Decree, Husband shall immediately execute any and all documents necessary to remove his name from the account and relinquish all ownership interest therein. Upon removal of Husband's name, the account shall become the sole and separate property of Wife and shall remain in her exclusive possession and control. Husband hereby waives any and all rights, claims, or interests he may have in the account and agrees that the account shall thereafter be free and clear of any claim made by him.

BANK ACCOUNTS. The parties acknowledge that there are three joint accounts, 2 checking accounts with Bank of America, and 1 savings account with Bank of America. The parties agree that the joint bank account, account ending in *6607, and the savings account ending in *0573, shall be transferred to Husband and ownership of the account shall be changed within ten (10) days of the entry of the Final Decree. Wife shall cooperate in good faith to execute all documentation, instruments, or authorizations reasonably necessary to effectuate the removal of her respective name from the applicable account upon its closure, and make herself reasonably available for any in person meetings necessary to effectuate the removal.

The parties agree that the joint bank account, ending in *6722, shall be transferred to Wife and ownership of the account shall be changed within ten (10) days of the entry of the Final Decree. Husband shall cooperate in good faith to execute all documentation, instruments, or authorizations reasonably necessary to effectuate the removal of his respective name from the applicable account upon its closure. Upon the closing of the Joint Account, the Parties agree to not open or maintain any joint bank account or financial account with the other Party.

Wife shall remove any bills, held in her name individually, or her sole responsibility, attached to the account within ten (10) days of the entry of the Final Decree. Should any funds be removed or deducted from the account after ownership is changed to Husband, individually, all funds withdrawn shall be deducted from Wife's monthly alimony payments. Wife waives all rights, interests, or claims to the funds held in the account.

The Parties agree that the checking account, maintained by the Wife, and all funds held therein at the time of closing the account, shall be the sole and separate property of the Wife. Husband waives all rights, interests, or claims in the funds held in the account.

The parties acknowledge that they currently maintain accounts held solely in their names, individually. Each party shall have the right to manage and maintain their own individual accounts held in their name solely. Each party shall have all rights, title, and interest to any personal checking or savings account of any kind, held in his or her name with sole ownership and control over their respective accounts. The other Party shall have no claim, rights, or interest to any account or funds held therein.

10. **LIMITED LIABILITY COMPANY**. The parties acknowledge that Wife is the sole owner of New Era Intel and Hotchkiss Hern & Co., both Limited Liability Companies, including business interest, assets, proceeds, property, accounts, contracts, debts, liabilities, and any other property, tangible or intangible, associated with the company. The parties agree that all proceeds derived therefrom, including

profits, proceeds, income, or any form of compensation shall remain the sole and separate property of the Wife.

Husband shall not pursue, commence, or initiate any legal proceedings against the company, its capital earnings, or successors arising from or connected with the business, whether known or unknown. Husband waives any and all present and future claims, rights, or interest in the business.

Wife shall have the exclusive authority to operate, manage, and control the business without interference, consent, or participation from Husband. Wife agrees to hold Husband harmless of any debts or liabilities associated with the Business.

11. **ATTORNEYS FEES**. Husband shall be responsible for his attorney's fees and agrees to pay up to $1,800.00 towards Wife's attorney's fees. Any remaining attorney's fees or costs associated Wife's representation shall be the sole responsibility of the Wife.

12. **COURT COSTS**. All outstanding court costs shall be split equally between Husband and Wife.

13. **INCOME TAXES**. The parties agree that all tax-related matters, whether past, present, or future, shall be discussed and handled separately and outside the confines of this Agreement. The parties agree to cooperate in good faith to resolve all matters pertaining to their 2025 incomes taxes. Each party shall be solely responsible for his or her own individual federal, state, and local taxes, including penalties, interest, or liabilities associates therein, and neither shall have any claims against the other relating to such tax obligations.

14. **EXPERT TAX ADVICE**. Both parties acknowledge that neither of are relying upon any tax advice from their respective attorneys and that said attorneys have expressed

no expertise regarding the tax ramifications or consequences arising out of this Agreement. Each of the parties have been advised by their attorneys to seek tax counseling regarding the consequences of this Agreement from their own accountant or tax attorney and each of the parties acknowledge that they have had an opportunity to do so.

15. **LIMITED COMMUNICATION**. The Parties agree that, effective upon the entry of the Final Decree, there shall be no direct or indirect contact or communication with the other except as expressly stated herein. Neither party shall initiate or engage in any communication, including but not limited to, telephone calls, social media messages, emails, in person correspondence, or written correspondence, beyond the following: bills, payments for any outstanding amounts, administrative or transitional related matters, or matters pertaining to the Parties' child.

Neither party shall harass, threaten, intimidate, disparage, or otherwise interfere or cause any other person to interfere with the peace and privacy of the other. The parties agree that there shall be no communication regarding any personal or social aspects of the other's life, but any incidental contact shall not be considered or construed as a violation of this Agreement.

16. **NOTICE PURSUANT TO T.C.A. § 36-4-134 REGARDING CREDITORS.** This Agreement does not necessary affect the ability of a creditor to proceed against a party or a party's property, even though the party is not responsible under the terms of this Agreement for an account, any debt associated with an account or any debt even though the party is not responsible to a creditor under the terms of this Agreement for

an account, any debt associated with an account, or any debt. It may be in a party's best interest to cancel, close or freeze jointly held accounts.

17. **ENFORCEMENT.** The parties agree that in the event it becomes reasonably necessary for either party to institute legal proceedings to enforce any terms or provisions of this Agreement, the successful party shall be entitled to a judgment for reasonable expenses incurred in bringing the post-judgment enforcement action, including attorney's fees, court costs and other expenses related to bringing or defending the enforcement action.

18. **INCORPORATION.** All such parts of this Agreement shall be incorporated in the Final Decree. The parties agree that this Agreement is incorporated with their full understanding, with no prior oral statements or written agreements having any force or effect. This Agreement supersedes and merges any and all prior executed agreements between the parties involving the same subject matter as provided for in this Agreement. Neither party relies on any representations made by the other except for those expressly set forth herein. By signing this Agreement, the parties stipulate to these terms being enforceable as if they were, at the moment of signing, an Order of this Court.

19. **INTERPRETATION.** Both parties agree that the usual rule of construction that a document should be construed against the drafter of the document shall not be applied in interpreting this Agreement. The headings in this Agreement are for convenience only and are not to be used in interpreting this Agreement. The singular shall include the plural and vice versa, when the context so requires. Any exhibits to this

Agreement are hereby incorporated by reference into and made a part of this Agreement.

20. **<u>DISCLOSURE OF ASSETS AND LIABILITIES.</u>** The parties warrant and represent that they have made a full disclosure to each other of all the assets and liabilities in which they have an individual or joint interest with the other party. The parties acknowledge that they have no interest, assets, or debts, or interest in any assets owned by them, either jointly or individually, which are not reflected in this Agreement. In the event that it develops that there were undisclosed assets, debts, or interests in assets, that party to whom assets were undisclosed or not fully disclosed shall have a right to one-half of same and shall be awarded their cost, fees, expenses, attorney's fees and damages incurred as a result of the non-disclosure.

21. **<u>BINDING AGREEMENT.</u>** This Agreement shall be binding upon and inure to the benefit of the parties hereto, their personal representative(s), hers and assigns.

22. **<u>CONSIDERATION.</u>** Each party expressly agrees that he or she has entered into this Agreement after mutual consideration; that consent to the execution of this Agreement has not been obtained by duress, fraud or undue influence by any person; and, that no representations of the facts have been made by either party to the other, except as herein expressly set forth, and that each has full knowledge of the business affairs and nature, extent and value of the separate property of the other and that the Agreement is fair and reasonable. Both parties have exercised their discovery rights, if they so choose, to their complete satisfaction. Both parties hereby waive any claim to set this Agreement aside based upon the lack of knowledge or failure to disclose financial information.

23. **SEVERANCE.** Should the Court make a finding or hold that any portion of this Agreement is invalid, the remainder shall be in full force and effect and the invalid portion shall be struck from the Agreement or modified as the Court shall order.

24. **INDEMNIFICATION.** In the event a creditor of either party makes a claim against the other party, which is upheld by a Court of competent jurisdiction to pay any debt for which the other party is responsible, either by contract or pursuant to terms of this Agreement, the party against whom such claim is made shall be entitled to recover from the responsible party the amount of any payment he or she makes, including interest, and any expenses incurred in defending against the creditor's claim, including reasonable attorney's fees.

25. **NO FURTHER ENCUMBRANCES.** The parties warrant and represent that, as of the date of the execution of this Agreement, all assets awarded to the other party shall be free and clear of any liens, debts, mortgages, interest, or other such encumbrances incurred by that party. The parties agree not to cause or permit any such encumbrance to be placed on the other party's awarded property, now or in the future.
If it is later discovered that a party has placed or allowed any encumbrance on property awarded to the other in this Agreement, that party shall be solely responsible for the full satisfaction and removal of such encumbrance and shall indemnify and hold harmless the other party from any loss, cost, or liability, including reasonable attorney's fees and costs.

26. **RELEASE OF CLAIMS AGAINST THE ESTATE OF THE ALTERNATIVE PARTY.** Each of the parties hereby releases, waives and relinquishes any and all claims and rights that he or she may hereafter acquire under the laws of any State of

the United States of America or any other country to share in capacity to any extent whatsoever in the state of the other party upon the other party's death, whether by dower, curtesy, statutory allowance, distribution in intestacy or gift of election to take against any Last Will and Testament now existing or hereafter made by either party. Each of the parties shall have the right to dispose in such a manner as he or she may, in his or her uncontrolled discretion, deem proper and with the same force and effect as if the other party had died during his or her lifetime.

Each of the parties' covenants that he or she will permit any Will of the other to be probated, and if such other shall die intestate, will allow administration upon his or her personal estate in effect to be taken out by the person or persons who would have been entitled thereto had such party died during the lifetime of the other.

27. **MODIFICATION**. A modification or waiver of any or all of the provisions of this Agreement shall be effective only if made in writing and executed with the same formality as this Agreement and approved by the Court if such approval is required, and this requirement cannot be waived by oral agreement. Failure of either party to insist upon strict performance of any of the provisions of this Agreement shall not be construed as a waiver of any subsequent default of the same or similar nature.

28. **VOLUNTARY EXECUTION OF THE AGREEMENT**. The parties acknowledge and agree that neither party is under any duress or under the influence at the time of the execution of this Agreement and that this Agreement is entered into freely, knowledgeably, and voluntarily by both parties, without any fraud, coercion, or misrepresentation by either party. Each party acknowledges that he or she has fully read and understands this Agreement prior to the execution of same, and each party

acknowledges that the Agreement is fair and equitable in all respects, and under the circumstances. Each party agrees to abide by the provisions of this Agreement and acknowledges that no representations of any kind have been made to him or her as an inducement to enter into this Agreement other than the representations set forth herein.

29. **<u>REVOCATION OF BENEFICIARY</u>**. The parties agree that, except as otherwise provided by the terms of this Agreement, all documents executed by either party which designate the other party as a beneficiary shall be, and are hereby, revoked. Such documents shall include but are not limited to, powers of attorney, beneficiary designations under insurance policies, annuities, retirement programs, employee benefit programs, and bank accounts. It is the intent of the parties to this Agreement that neither party shall receive any proceeds as a beneficiary of the other party from and after execution of this Agreement unless otherwise provided by the terms of this Agreement.

    The failure of a party to change the beneficiary designation after the divorce is granted shall not be considered a modification of this agreement. The parties agree that each shall execute and deliver all necessary documents that may be required in the future to accomplish the purpose states herein.

30. **<u>ENTIRE AGREEMENT.</u>** This agreement constitutes the entire understanding of the parties. There are no agreements or understanding between them, other than those agreements and understandings expressly mentioned in this Agreement. There are no representations, warranties, covenants, or undertakings other than those expressly set forth herein, and each party enters into this contract voluntarily, advisedly, and with

full knowledge of the financial condition, nature, character, and value of both parties' separate and marital property, estate and income. The law of the state of Tennessee shall govern this Agreement in all respects.

IN WITNESS THEREOF, the parties have hereunto signed their names and affixed their seals to this Agreement.

MARITAL DISSOLUTION AGREEMENT READ AND CONSENTED TO BY:

Elizabeth Ann Gifford, Wife

2-17-26
Date

Grant Taylor Gifford, Husband

2-18-26
Date

Signed to and subscribed before me this

the 17 day of February, 2026.

NOTARY PUBLIC

My commission expires: 11-21-2028

Signed to and subscribed before me this

the 18th day of February, 2026.

NOTARY PUBLIC

My commission expires: 03/24/2027

AUBREY SNYDER
STATE OF TENNESSEE NOTARY PUBLIC
WILLIAMSON COUNTY

THERESA BYRNE
STATE OF TENNESSEE NOTARY PUBLIC
WILLIAMSON COUNTY
COMM. EXP. 03/24/2027